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Case Number: 25STCV23734 Hearing Date: August 28, 2026 Dept: 224

Green Farms California v. Alta Adams Restaurant Project, LLC

FACTS OF THE CASE: Plaintiff Green Farms California, LLC dba Worldwide Produce is a wholesale produce supplier. Plaintiff alleges that on or about July 16, 2019, Defendant Alta Adams Restaurant Project, LLC opened a credit account with Plaintiff and thereafter ordered and accepted produce and related goods on credit, which Defendant promised to pay for. The Complaint, filed August 13, 2025, pleads two causes of action against the LLC and Does 1–20: (1) breach of contract and (2) common counts (open book account, account stated, money had and received, work and services rendered, and goods sold and delivered). The Complaint alleges a principal balance of $81,488.42 “per Statement dated February 6, 2025,” with the account in default as of December 18, 2024, and prays for damages of $81,488.42, prejudgment interest at 10% per year from December 18, 2024, and attorney’s fees according to proof. The credit application attached to the default package contains a credit agreement, signed by Defendant’s manager, in which Defendant agreed to pay for purchases when due, to pay 18% interest on past-due amounts, and to pay collection costs and expenses including reasonable attorney’s fees. Plaintiff now requests a court judgment under CCP § 585(b) and (d) for a reduced principal of $65,628.48, plus interest, attorney’s fees, and costs.

PROOF OF SERVICE/DEFAULT: Default previously entered on 10/23/2025, per the clerk’s notation on the CIV-100 filed 12/16/2025.

PRINCIPAL REQUESTED: $ 65,628.48

INTEREST: $ 6,059.39

ATTORNEY’S FEES: $ 3,895.13

COSTS: $ 570.00

TOTAL: $ 76,153.00

ANALYSIS:

Entry of default is not void: the plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered. This is not a personal injury or wrongful death action, so no statement of damages was required. There is no pending motion to vacate default.

Plaintiff dismissed DOES 1–20 without prejudice by a Request for Dismissal (CIV-110) filed and entered on December 16, 2025, so all parties against whom a default judgment is not sought have been dismissed. Judgment is sought against the sole remaining defendant, so no severability or duplicative-recovery issue arises.

The JC Form CIV-100 was used to request a court judgment (item 1(d)); item 2 is completed, its line items sum correctly to the $76,153.00 total, and the figures match the proposed JUD-100. The declaration of nonmilitary status requirement is satisfied because Alta Adams is a business entity (item 8(e)). A memorandum of costs is verified on the CIV-100 (item 7); the $435.00 filing fee and $135.00 process server fee are allowable under CCP § 1033.5(a).

Proposed form of judgment is provided (JUD-100). The proposed judgment is on the Judicial Council JUD-100 form, is completed as a court judgment by default under CCP § 585(b) with the written-declaration box checked under § 585(d), names the sole remaining defendant in item 5a, and its item 6 amounts match the CIV-100 line for line.

585 Declaration has been provided. (Blake Decl.) Nathan Blake declares that he is the custodian of records for Plaintiff and competent to testify from personal knowledge, and he authenticates the credit agreement (Exhibit A) and the invoices (Exhibit B) as business records. The declaration is made under penalty of perjury under the laws of the State of California and is executed and dated October 21, 2025, at Los Angeles, California. The sufficiency of the amount it attests to is addressed under PROBLEMS below.

Counsel has also submitted supporting declarations: a declaration re copies of documents in lieu of originals, a declaration re account for entry of default judgment and brief summary of case pursuant to CRC 3.1800, and a declaration re costs pursuant to CCP 1033. The copies-in-lieu-of-originals declaration addresses the written-obligation requirement, although no proposed order accepting the copies accompanies it.

The interest computation required by CRC 3.1800(a)(3) is provided: 10% under Civil Code § 3289 on $65,628.48 yields $17.9804 per day, and 337 days from December 18, 2024 through November 20, 2025 yields the $6,059.39 requested. The arithmetic is internally correct, and the 10% rate is proper for a contract case (and below the 18% contract rate), but see below regarding the accrual start date. The Complaint prays for interest, and the relief requested is of the type, and within the amount, demanded in the Complaint, satisfying CCP § 580.

Attorney’s fees are requested in the Complaint. The prayer seeks attorney’s fees according to proof (Complaint, item 10(c)), and both causes of action allege that Plaintiff is entitled to attorney’s fees by an agreement or a statute (Complaint, BC-5 and CC-3). The entitlement is supported by the signed credit agreement in Exhibit A, in which Defendant promised to pay collection costs and expenses including reasonable attorney’s fees, so the fee is properly calculated under the LASC Rule 3.214 schedule rather than capped by Civil Code § 1717.5’s book-account limits. The amount requested is addressed under PROBLEMS below.

The Complaint states valid causes of action for breach of contract and on the common counts: it alleges an open account, delivery and acceptance of goods, nonpayment despite demand, and a sum certain, all of which the defaulting defendant admits as to liability. The default does not, however, establish the amount of damages, which Plaintiff must still prove up.

PROBLEMS:

The principal amount is not supported by the evidence. Exhibit B consists of five invoices dated January 17 through January 22, 2025, totaling $1,353.21, not $65,628.48. The custodian declares that Exhibit B reflects an outstanding balance of $65,628.48, but the exhibit he cites shows a small fraction of that sum. No ledger, statement of account, or summary of the balance appears anywhere in the package, and the February 6, 2025 statement referenced in the Complaint is not attached. The custodian’s assertion, unsupported by the account records it purports to rest on, is an inadequate foundation under CCP § 585(d) and LASC Rule 3.205. The unexplained $15,859.94 reduction from the $81,488.42 alleged in the Complaint to the $65,628.48 now requested further undermines the figure, particularly because the custodian declares that no payments have been received and the CIV-100 acknowledges no credits.

Moreover, there is no email correspondence or other evidence proving goods delivered and received.

The interest start date is contradicted by the exhibits. Counsel derives the December 18, 2024 default date from “the most recent date on Exhibit B,” but every invoice in Exhibit B is dated January 2025 on Net-7-day terms, so the stated evidentiary basis for that date does not hold. (The Complaint does separately plead a December 18, 2024 default date, which the default admits, so the Court may treat the date as established notwithstanding the mismatch.) Interest on the full balance from December 18, 2024 nonetheless appears overstated to some degree. In addition, because the invoices impose a 1.5% monthly service charge, the record does not exclude the possibility that the claimed principal already embeds accrued finance charges, which would make a further 10% award interest on interest. Interest is also computed only through November 20, 2025; any corrected package should recompute interest from a supported accrual date (or dates) through a current date.

Attorney’s fees are overstated under the local schedule. Counsel purports to apply the Los Angeles County fee schedule but recites a bracket of “$3,270.00 plus 4% of the excess over $50,000.00.” LASC Rule 3.214(a) provides, for judgments of $50,000.01 to $100,000, $1,890 plus 2% of the excess over $50,000, which on the $65,628.48 principal yields $2,202.57, not $3,895.13. Because counsel claims only the schedule amount and provides no itemized declaration supporting a greater award, the fee should be reduced to $2,202.57 (which would reduce the total to $74,460.44 if the principal and interest were otherwise supported by the evidence. On these filings, the principal and interest are not supported, and neither is the fees request).

Minor defects: the declaration of mailing on the CIV-100 (item 6(b)(1)) leaves the mailing date blank, although the mailing address matches the ship-to address on the credit application and invoices; and the Complaint caption names the Superior Court “County of Orange” although the action was filed and is pending in Los Angeles, an apparent scrivener’s error.

CONCLUSION:

The OSC is CONTINUED to December 21, 2026 at 9:00 a.m. for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Sanctions Against Plaintiff’s Counsel in the Amount of $250 Pursuant to CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default Judgment for the same day and time. (Default was entered on October 23, 2025, but the default judgment package was not submitted until December 16, 2025, 54 days later and beyond the 45 days allowed by CRC 3.110(h).) If a corrected default judgment package is not filed by the Court’s deadline, counsel is subject to sanctions.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.